Civil Code section 8488 is silent on whether a petitioner is entitled to attorneys' fees and costs in the case of a pre-judgment dismissal of the petition because the matter is mooted by the voluntary filing of a lien release by the respondent.

Generally, however, it is well established that a court may award statutory prevailing party attorneys' fees even when an action does not result in a favorable final judgment. *Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 565 ("Our prior cases uniformly explain that an attorney fee award may be justified even when plaintiff's legal action does not result in a favorable final judgment."); see also *Winick Corp. v. Safeco Ins. Co.* (1986) 187 Cal.App.3d 1502, 1507 ("prevailing party" has been defined in many contexts to allow attorney fee awards even where there has been no decision on the merits.). This includes cases where a plaintiff's action has become moot because they effectively achieved the relief they sought. *Graham v. DaimlerChrysler Corp.*, supra, 34 Cal.4th at 565-566 (citing *Press v. Lucky Stores, Inc.* (1983) 34 Cal.3d 311).

The trial court, in its discretion, must pragmatically assess the litigation and determine whether or not a fee claimant has achieved its purposes in the litigation. See *Winick Corp. v. Safeco Ins. Co.*, *supra*, 187 Cal.App.3d 1502, 1507 (interpretating former Civil Code section 3250) (the courts have held that "the inquiry as to a party's success must be a pragmatic one that may range outside the merits of the underlying dispute," and that the "focus might well be on establishing the precise factual/legal condition that the fee claimant has sought to change or affect."); see also *Coltrain v. Shewalter* (1998) 66 Cal.App.4th 94, 107 (in determining prevailing party following voluntary dismissal of alleged SLAPP suit, "the critical issue is which party realized its objectives in the litigation).

The Court has considered and finds that Petitioners have achieved their purposes in the litigation by way of securing the voluntary lien release, notwithstanding the action having become moot as a result. Therefore, the Court finds that Petitioners are the prevailing parties entitled to recover attorneys' fees, as well as their costs.

The request for fees and costs is supported by the Supp. Reply. The Supp. Reply includes a summary of the legal services rendered and expenses incurred in the litigation of the matter. See Supp. Reply, ¶¶2-4. The Court has considered the 4.3 hours of legal work described and is familiar with the scope of the pleadings prepared and filed. The Court finds that the fees and costs incurred were reasonable given the nature and scope of the issues in the case.

<u>Disposition</u>

The Court finds and orders as follows:

1. The Petition is DENIED and the action DISMISSED as moot.
2. Petitioners to recover attorneys' fees in the amount of $2,257.50 and costs in the amount of $225.00, as against Defendant.
3. Petitioners to prepare a Judgment of Dismissal.

14. 9:00 AM CASE NUMBER: MSL17-02593
CASE NAME: WELLS FARGO VS LEE
***HEARING ON MOTION IN RE: MOTION TO VACATE DIMISSAL AND ENTER JUDGMENT**
FILED BY:
****TENTATIVE RULING:****

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal under C.C.P. § 664.6 & Enter Judgment Pursuant to Stipulation on August 6, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

The Court previously continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. Plaintiff was ordered to give notice of the new hearing date to Defendant forthwith. See Order entered November 12, 2025. Notice of the Court's tentative ruling and the hearing date on the motion was duly given to Defendant.

Defendant has not filed any opposition.

Background

The parties entered into that certain settlement agreement filed on June 1, 2021 (the "Settlement Agreement"), the terms of which included payment by the defendant Rene J Lee ("Defendant") in the amount of $4,676.00 plus costs, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of David Bartley filed August 6, 2025 ("Supporting Declaration"), ¶¶3-4 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id*., **Exhibit 1,** ¶¶1-2 and 8-10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶5. Defendant failed to cure after notice. *Id*. at ¶6 and **Exhibit 2** thereto.

After credit for amounts paid, there remains $1,976.00 due and owing, plus costs of $294.50, for a total of $2,270.50. See Supporting Declaration, ¶¶8-10.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of $1,976.00, plus costs of $294.50, for a total judgment of $2,270.50.